

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2895

By: Townley

AS INTRODUCED

An Act relating to children; amending 10 O.S. 2021, 405.4, which relates to the Oklahoma Child Care Facilities Licensing Act; providing time period to appoint certain teacher; providing that certain children be excluded when determining required number of certain teachers; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 405.4, is amended to read as follows:

Section 405.4. A. Any person with a bachelor's degree or postgraduate degree shall be considered as having met the educational requirements for a director of a full-time child care center required by the Department of Human Services. Nothing in this section shall be construed as to affect annual continuing education requirements. The director of a child care center may also qualify as a master teacher for children of all ages.

B. 1. Any person replacing a master teacher at a child care center shall be granted a one-year probationary period to fulfill the educational qualifications required by the Department for a

1 master teacher. The Department may extend the probationary period
2 an additional year as long as the person is actively pursuing that
3 goal.

4 2. Directors shall have sixty (60) days to appoint a
5 probationary master teacher.

6 C. Licensed child care facilities opened or expanded before
7 November 1, 2016, shall have thirty-five (35) square feet of floor
8 area per infant in rooms occupied only by infants. New construction
9 and existing space not previously licensed for child care after
10 November 1, 2016, shall have forty (40) square feet of floor area
11 per infant in rooms occupied only by infants.

12 D. In determining the number of master teachers required based
13 on license capacity and desired Star level, after school care
14 children shall not be counted toward the license capacity.

15 SECTION 2. This act shall become effective November 1, 2025.

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